

A MEDIAEVAL BURGLARY



T. F. TOUT

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Anglia lea tunc gens scota pugnat inane
anno regni regis eduardi tricesimo se-
cundo. papa benedictus dñi apud petriū
verbum de populo p̄dicaret: int̄ cetera deploret
abominabile excidium in uicariū ihu xpi
p̄ci commissum. nec tantū cadum p̄sone desle-
uit. quāmo ip̄m xpm a multis pilati trān-
sp̄lati. asserens: caput dampnandū. et tanq̄
temerariū planxit in carne uelut i sepulcro
uiduo a multis custoditū. nō uideat ap̄ls
xpc resurgens ex mortuis iam nō mori. et cetera.
uerū est in carne iam glorificata. & sicut dix-
it xpc p̄ter interroganti. dñe quo uadis? At-
uenio romā tuam conserui. Intellexit q̄ hoc

T. F. TOUT

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A LECTURE

DELIVERED AT THE JOHN RYLANDS LIBRARY ON THE
20TH JANUARY, 1915

BY

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BISHOP FRASER PROFESSOR OF MEDIAEVAL AND ECCLESIASTICAL HISTORY IN THE
UNIVERSITY OF MANCHESTER

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A MEDIAEVAL BURGLARY.¹

BY T. F. TOUT, M.A., F.B.A., BISHOP FRASER PROFESSOR OF
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THE burglary, about which I have to speak to-night, I did not discover by ransacking the picturesque and humorous annals of mediaeval crime. I came across the details of this incident when seeking for something quite different, for it happened when I was attempting to investigate the technicalities of the history of the administrative department known as the king's Wardrobe. But so human a story did something to cheer up the weary paths of Dryasdust, and he hands it on to you in the hope that you will not find it absolutely wanting in instruction and amusement. Now my burglary was the burglary of the king's treasury, or more precisely, of the treasury of the king's wardrobe, within the precincts of the abbey at Westminster. The date of the event was 24 April, 1303. More precisely, according to the chief burglar's own account, it was on the evening of that day that the burglar effected an entrance into the king's treasury, from which, he tells us he escaped, with as much booty as he could carry, on the morning of 26 April. Who had committed the burglary is a problem which was not quite settled, even by the trials which followed the offence, though these trials resulted in the hanging of some half a dozen people at least. But after the hanging of the half-dozen, it was still maintained in some quarters that the burglary was committed by one robber only, though charges of complicity in his guilt were in

common fame extended to something like a hundred individuals. And in this case common fame was not, I think, at fault.

I wish first of all to explain the meaning of the sentence, rather cryptic to the generality, in which I spoke of my burglary as that of the robbery of the treasury of the king's wardrobe within Westminster Abbey. For this purpose I must ask you to carry your minds back to the Westminster of the early years of the fourteenth century. Westminster was then what Kensington was in the eighteenth or early nineteenth century, a court suburb, aloof from the traffic and business of the great city of London. Now the twin centres of Westminster were the king's palace and the adjacent Benedictine Abbey. The rough plan, which I am permitted to print on the opposite page, will show the close relation of the two great groups of buildings. It was much closer in many ways than the relations between the Houses of Parliament, the modern representative of the old palace, and the present abbey buildings. If these latter largely remain, despite many destructive alterations in details, in their ancient site, we must remember that there was nothing like the broad modern road that separates the east end of the abbey from Westminster Hall and the House of Lords. A wall enclosed the royal precincts, and went westwards to within a few feet of the monks' infirmary and the end of St. Margaret's Church. The still existing access to the abbey on the east side of the south transept through the door by which you can still go into "poet's corner," having the chapter house on your left and Henry VII's chapel on your right, was the portal by which immediate access to the palace could be gained through a gate in this wall. The space between the abbey and the palace wall was occupied by the churchyard of St. Margaret's. The parish church—or rather its successor—still crouches beneath the shade of the neighbouring minster. This churchyard covered the ground now taken up by Henry VII's chapel, which of course was not as yet in existence. In the midst of this grassy plot stood the chapter house of the monks of Westminster, with its flying buttresses and its single pillar supporting its huge vault, then newly erected by the pious zeal of Henry III.

Westminster Abbey was founded by Edward the Confessor, and substantially refounded by Henry III, who had shown immense care and lavished large sums on a grandiose scheme for the rebuilding of the great house of religion which contained the shrine of his favourite saint, in whose honour he had given his son the name of Edward. The rebuilding went on into the reign of Edward I, who was not much inferior to his father in his zeal for the church, and was doubly bound to honour his father's wishes and the memory of his own patron saint. In the closing years of the thirteenth century circumstances compelled Edward I to desist from this work. The king now found himself dragged into enormous expenses by the French, Scottish, and Flemish wars. He was perforce turned from church-building to get men and money for his wars.

The finances of England under Edward I were less elastic than under Mr. Lloyd-George, and modern credit and banking were then in their very infancy. Edward I, though he imposed taxes which would make the most stalwart militarist of to-day quiver, soon found himself hopelessly in debt. To meet his burdens the king constantly employed differentiated taxation, but the differentiation was calculated by rather a different method from that in fashion nowadays. It was differentiation according to status, not according to wealth. The clergy, who were not expected to fight, were expected to pay more heavily than the laymen. Let us take as an instance of how things were then done the taxes levied in 1294 when the fighting country districts were called upon to pay a tenth of their moveables in taxation, and the wealthier and more peaceful towns were asked for a sixth. From the clergy a tax equal, I think, to a modern income tax of ten shillings in the pound, was demanded, and it is said that when the dean of St. Paul's heard of this unprecedented impost, he fell dead on the spot. If such heroic efforts—I mean the king's not the dean's—were necessary in 1294 at the beginning of England's troubles, how much worse things must have become by 1303, after ten years of storm and stress? By this date Edward I's finances were indeed in a bad state. Historians are only now

gradually beginning to realise how embarrassed the great king was in the last years of his reign, and how desperate were some of his attempts to fill his exchequer.

The whole of Edward's declining years were not equally strenuous, though his finances steadily grew worse. Before the end of the old century Edward had got over the worst of his troubles abroad. He therefore determined to devote himself with characteristic energy to the conquest of the "rebel" Scots. Since therefore Scotland now became the king's chief anxiety, Edward made his headquarters in the north of England. In those days, where the king lived there the machinery of government was to be found. For though England in the thirteenth century had centralised institutions, those institutions were not centralised in a local capital. It is true that one English city was immensely more important than all the rest. London, in the thirteenth as in the eighteenth century, was, relatively to other towns, even greater and more important than is the case nowadays. Of course Edward I's London to our eyes would be quite a little place, but at a time when there was, outside London, perhaps no town of more than 10,000 inhabitants and very few of that population, a city four or five times that size was something portentous. Yet this greatness of London was due to its commercial activity, much more than to the fact that it was the "capital" of the country or its seat of government. In reality there was no capital in the modern sense, for the English tradition was that the government should follow the king. It was only very gradually that the governing machinery of the land was permanently settled in Westminster or London. There was, however, already a tendency towards making the great city, or rather its neighbouring court suburb, a centre of permanent administrative offices, a capital in the modern sense. Thus the Court of Common Pleas had been settled in London since Magna Carta and the Exchequer, that is the department of finance, had also been fixed there since the reign of Henry II. These were, however, still the exceptions which proved the rule. The office of the Chancery—which was not then a law-court, but the secretarial office of

state—followed the king. So also did certain branches of the administration which depended on the court, and were intended, first of all, to be the machinery for the government of the king's household.

In the middle ages no distinction was made between the king and the kingdom. If the king had devised a useful machine for governing his household and estates, he naturally used it for any other purposes for which he thought it would be useful. We find, therefore, the court offices of administration and finance working side by side with the national offices, not only in dealing with household affairs, but in the actual work of governing the country.

The most important of these household offices was that called the king's Wardrobe. Originally the Wardrobe was, of course, the closet in which the king hung up his clothes, and the staff belonging to it were the valets and servants whose business it was to look after them. From this modest beginning the king's Wardrobe had become an organised office of government. Its clerks rivalled the officers of the Exchequer in their dealings with financial matters, and the officers of the Chancery, in the number of letters, mandates, orders, and general administrative business which passed through their hands.

The Wardrobe always "followed the king". In war time, then, it was far away from London, at or near the scene of fighting. In such periods it became the great spending department, while the Exchequer normally remained at Westminster collecting the revenue of the country, and forwarding the money to the Wardrobe which spent it. For five years before 1303 the king had thrown his chief energies into the conquest of Scotland. Under these circumstances London and Westminster saw little of him. Moreover, he found it convenient to have near him in the north even the sedentary offices of government. Accordingly in 1298 Edward transferred the Exchequer, the law courts, and the Chancery to York. From 1298, then, to 1303 York, rather than Westminster, might have been called the capital of England, and the king's appearances to the south were few and far between. The occasion of such visits was

generally his desire to get money, and to make arrangements with his creditors. From such a short sojourn the king went north in the early months of 1303. Despite all his efforts it was only in that year that he was really able to put his main weight into the Scottish war.

When our burglary took place, king, court, and government offices had been removed to York for over five years. Under mediaeval conditions the eye of a vigilant task-master was an essential condition of efficiency. It followed then that during Edward's long absence things at Westminster were allowed to drift into an extraordinary state of confusion and disorder. Affairs were made worse by the fact that even kings were not always free to choose their own servants. Thus the king's palace at Westminster was in the hands of an hereditary keeper. There was nothing strange about this. In the middle ages such offices were frequently held by hereditary right, just as in the East everybody takes up his father's business as a matter of religious duty. Earl Curzon once pointed out to the electors of Oldham that in India there are still hereditary tailors, who did their work very well. However this may be with tailors in the East and legislators in the West, the hereditary keeper of Edward's palace of Westminster did not prove to be a very effective custodian of his master's property. His name was John Shenche or Senche, and he held two hereditary offices, that of "keeper of the king's palace at Westminster," and also the keepership of the Fleet prison, in right of his wife Joan, who had inherited both from her father. Thus in addition to the keepership of the palace John Shenche "kept" the king's prison of the Fleet in the city of London. As a rule, John and his wife Joan had their habitation in the prison in the City. John, therefore, employed as his deputy at Westminster an underling, a certain William of the Palace, who kept, or rather did not keep, for him the king's palace at Westminster. However, early in the year 1303, John left his abode in the City where his wife remained, and took up his quarters in the palace. Apparently the prison was not so comfortable a place for an easy-going officer to live in as the palace. Perhaps, too, the domestic restraints imposed upon Shenche in the city were burdensome to him.

Certainly gay times now ensued in the deserted palace. Soon John and William, in the absence of the higher authorities, seem to have gathered together a band of disreputable boon companions of both sexes, whose drunken revels and scandalous misconduct were soon notorious throughout the neighbourhood. One element in this band of revellers was, I regret to say, a certain section of the monks of the neighbouring monastery. For as the absence of the king and the court had left the palace asleep, as it were, so also had the monastery at Westminster sunk into a deeper and more scandalous slumber.

The enthusiasm, effort, and excitement which had marked the period of Henry III's reconstruction of Westminster Abbey had now died down. Mediaeval man, though zealous and full of ideas, was seldom persistent. It is a commonplace of history that when the first impulse of fervour that attended a new order or a new foundation had passed away, religious activity was followed by a strong reaction. The great period of the monastery at Westminster had been during its reconstitution under Henry III, but that time of energy had now worked itself out, and the abbey had gone to sleep. The work of reconstruction had stopped from lack of funds; the royal favour as well as the royal presence was withdrawn gradually from the abbey. Moreover, a few years earlier a disastrous fire devastated the monastic buildings, and only just spared the chapter house and the abbey church. It looks as if the monks had to camp out in half-ruined buildings till their home could be restored. All this naturally relaxed the reins of discipline, the more so since the abbot, Walter of Wenlock, was an old man, whose hold on the monks was slight, and some of the chief officers of the abbey, the *obedientiaries*, as they were called, were singularly incompetent or unscrupulous persons. It followed naturally that many of the fifty monks became slack beyond ordinary standards of mediaeval slackness. It was both from obedientiaries and common monks that John Shenche and William of the Palace secured the companions for their unseemly revels. There now comes upon the scene a new figure, in fact, the hero of the burglary, Richard of Pudlicott.

Richard of Pudlicott began life as a clerk, but abandoned his clergy for the more profitable calling of a wandering trader in wool, cheese, and butter. England's economic position in those days reminds us of the state of things now prevailing in Argentina or Australia, rather than that in modern industrial England. She had little to sell abroad save raw materials, especially wool, which was largely exported to the great clothing towns of Flanders. This traffic took Pudlicott to Ghent and Bruges in 1298, when Edward I had allied with the Flemings against the king of France. But his trading adventures were as unsuccessful as the king's military efforts in Flanders. Moreover, after the king's return to England, Pudlicott had the ill luck to be among those merchants arrested as a surety for the debts which Edward had left behind him in the Low Countries. This unceremonious treatment of an alien ally is a method of mediaeval frightfulness which may be recommended to our alien enemies, but Edward's credit was so bad that we can hardly blame the Flemings for leaving no stone unturned to obtain payment of their debts; whether they succeeded I do not know. Before long Richard escaped from his Flemish gaol, leaving his property in Flanders in the hands of his captors. Nursing a grievance against the king, and with dire poverty facing him, he took lodgings in London, where, like many bankrupts, he seems to have generally had enough money to indulge in all the personal gratifications that he had a special mind to practice. It seems that in the pursuit of his disreputable pleasures, Pudlicott was brought into contact with John Shenche, William of the Palace, and the other merry-makers, lay and ecclesiastical, in the lodge of the king's palace of Westminster. He had a specious excuse for haunting Westminster Hall. He was—he says himself—seeking a remedy in the king's courts for the property he had lost in Flanders. How he could find one, when these courts were at York, I cannot say. But, as we shall see, many of Pudlicott's personal statements are difficult to reconcile with facts. However, Edward himself soon came to Westminster, but withdrew after a short stay, leaving Pudlicott unpaid.

We have seen how near was the palace to the abbey, and how the palace keeper's monastic friends formed a living bridge between the two. One result of these pleasant social relations was that the Abbey of Westminster soon became familiar ground to Pudlicott. One day, when disturbed at the hopelessness of getting his grievances redressed by the king, he wandered through the cloisters of the abbey, and noticed with greedy eyes the rich stores of silver plate carried in and out of the refectory of the monks, by the servants who were waiting on the brethren at meals. The happy idea struck him to seek a means to "enable him to come at the goods which he saw". Thus the king's foundation might, somewhat irregularly, be made to pay the king's debts. Pudlicott soon laid his plans accordingly. The very day after the king left Westminster, Pudlicott found a ladder reared up against a house near the palace gate. He put this ladder against one of the windows of the chapter house; he climbed up the ladder; found a window that opened by means of a cord; opened the window and swung himself by the same cord into the chapter house. Thence he made his way to the refectory, and secured a rich booty of plate which he managed to carry off and sell.

Pudlicott's success with the monks' plate did not profit him for long. Within nine months—and we may believe surely this part of his not too veracious tale—the proceeds of the sale of the silver cups and dishes of the abbey had been eaten up. No doubt the loose life he was living and the revels with the keepers of the palace involved a constant need for plentiful supplies of ready cash. Anyhow by the end of 1302 Richard was again destitute, and looking out for something more to steal. It was, doubtless, dangerous to rob the monks any more, and perhaps the intimacy which was now established between him and his monastic boon companions suggested to Richard a more excellent way of restoring his fortunes. His plan was now to rob the king's treasury, and his success seemed assured since, as he tells us, he "knew the premises of the abbey, where the treasury was, and how he might come to it". How he profited by his knowledge we shall soon see, but first

we must for a moment part company with Pudlicott's "confession," which up to now I have followed with hesitation. But for the next stage of our story it is plainly almost the contrary of the truth. Before we can with advantage explain why we can no longer trust his tale, it would be well for us to state what this treasury was and how it could be got at.

Let us begin with the word treasury. In the fourteenth century treasury meant simply a storehouse, or at its narrowest a storehouse of valuables. To us the "treasury" is the government department of finance, but under Edward I the state office of finance was the Exchequer, which, as we saw, was located normally at Westminster, but since 1298 at York. When at Westminster the Exchequer had a "treasury" or storehouse there also, yet in its absence it is not likely that it kept either valuables or money at Westminster. But side by side with the state office was the household office of finance, the Wardrobe, and, though the wardrobe office was itinerating with the king, it still kept a "treasury" or storehouse at Westminster, and this, for the sake of greater safety, had been placed for some years at least within the precincts of the abbey. From the monastic point of view, it was doubtless an inconvenience that nearness to the royal dwelling compelled them to offer their premises for the royal service. Accordingly, kings not infrequently made demands upon the abbey to use its buildings. Thus the chapter house became a frequent place for meetings of parliament, and at a later time it was used and continued to be used till the nineteenth century, for the storage of official records. In the same way Edward secured the crypt underneath the chapter house as one of the storehouses of his Wardrobe. When the crypt was first used for this purpose I do not know, but records show us that it was already in use in 1291, at which date it was newly paved. It was not the only storehouse of the Wardrobe. There was another "treasury of the wardrobe" in the Tower of London, but this was mainly used for bulky articles, arms and armour, cloth, furs, furniture, and the like. Most of what we should call treasure was deposited in the Westminster crypt, and we are fortunate in having still extant a list of the jewels preserved

there in 1298, the time when the court began to establish itself for its five years' sojourn in the north. In 1303 jewels and plate were still the chief treasures preserved there. Some money was there also, notably a store of "gold florins of Florence," the only gold coins currently used in England at a time when the national mints limited themselves to the coinage of silver. But I do not think there could have been much money, for Edward's needs were too pressing, his financial policy too much from hand to mouth, for the crypt at Westminster to be a hoard of coined money, like the famous Prussian *Kriegsschatz* at Spandau, which, we now rejoice to learn, is becoming rapidly depleted. Whatever its contents, Edward estimated that their value was £100,000, a sum equivalent to a year's revenue of the English state in ordinary times. Unluckily mediaeval statistics are largely mere guess-work. But the amount of the guess at least suggests the feeling that the value of the treasures stored in the crypt was very considerable.

The crypt under the chapter house is one of the most interesting portions of the abbey buildings at Westminster. It is little known because it is not, I think, generally shown to visitors. I am indebted to the kindness of my friend, Bishop Ryle, the present dean, for an opportunity of making a special inspection of it. It is delightfully complete, and delightfully unrestored. The chief new thing about it seems the pavement, but the dean's well-informed verger told me that it was within living memory that this pavement had replaced the flooring of 1291. Numerous windows give a fair amount of light to the apartment; though the enormous thickness of the walls, some thirteen feet, it was said, prevent the light being very abundant, even on a bright day. The central column, the lower part of the great pillar from which radiates the high soaring vaults of the chapter house above, alone breaks the present emptiness of the crypt. Considerable portions of the column are cut away to form a series of neatly made recesses, and there are recesses within these recesses, which suggest in themselves careful devices for secreting valuables, for it would be easy to conceal them by the simple expedient of inserting a stone here and there where

the masonry had been cut away, and so suggesting to the unwary an unbroken column. I should not like to say that these curious store-places already existed in 1303; but there is no reason why they should not. Certainly they fit in admirably with the use of the crypt as a treasury.

One other point we must also remember about the dispositions of this crypt. There is only one access to it, and that is neither from the chapter house above nor from the adjacent cloister, but from the church itself. A low, vaulted passage is entered by a door at the south-east corner of the south transept of the abbey, now for many centuries the special burial place for poets, eminent and otherwise. This passage descends by a flight of steep steps to the crypt itself, and the flight originally seems, I am told—doubtless as another precaution against robbery—to have been a broken one suggesting that a steep drop, presumably spanned by a short ladder, further barred access to the crypt. We must remember, too, that this sole access to the treasury was within a few feet of the sacristy of the abbey. The sacristy was the chapel to the south of the south transept, and communicating with it where the sacrist kept the precious vessels appropriated to the service of the altar. Altogether it looks as if the crypt were originally intended as a storehouse for such church treasure as the sacrist did not need for his immediate purposes. From this use it was diverted, as we have seen, to the keeping of the royal treasures. Nowadays the sacristy is called the chapel of St. Faith and is used for purposes of private devotion. We must not forget the close connexion in our period of the sacristy and the crypt. The connexion becomes significant when we remember that among Pudlicott's monastic boon companions at the palace-keeper's lodge was the sacrist of the abbey, Adam of Warfield.

Pudlicott had made up his mind to steal the king's treasure. The practical problem was how to get access to it. If we examine the evidence collected at the enquiry, we find that there are two discrepant accounts as to how the robber effected his purpose. The one is warranted by the testimony of a large number of sworn juries of

reputable citizens of every ward in the city of London, of burgesses of Westminster, and of the good men of every hundred in the adjacent shires of Middlesex and Surrey. It is—like much truthful evidence—rather vague, but its general tendency is, while recognizing that Pudlicott is the prime offender, to make various monks and palace officers his accomplices. Of the latter category William of the Palace seems to have been the most active, while of the many monks Adam Warfield the sacrist was the most generally denounced. But the proved share of both Adam and William was based largely on the discovery of stolen property in their possession. The evidence of the juries suggests theories as to how the crime may have been perpetrated; it does not make the methods of the culprits clear and palpable. But it suggests that masons and carpenters were called in, so that some breaking in of the structure was attempted, and in particular it suggests that the churchyard was the thoroughfare through which the robbers removed their booty.

Let us turn next to Pudlicott's own confession, that remarkable document from which I have already borrowed many details, though seldom without a word of warning. According to his confession, Pudlicott, having resolved to rob the treasury, came to the conclusion that the best way to tackle the business was to pierce a hole through the wall of thirteen feet of stone that supported the lower story of the chapter house. For so colossal a task time was clearly needed. Richard accordingly devoted himself during the dark nights of winter and early spring to drilling through the solid masonry. He attacked the building from the churchyard or eastern side, having access thereto from the palace. But the churchyard was open to the parish and the thrifty churchwardens of St. Margaret's had let to a neighbouring butcher the right of grazing his sheep in it. Now the butcher was told that his privilege was withdrawn, and passers-by were sent round by another path. This was a precaution against the casual wayfarer seeing the hole which was daily growing larger. To hide from the casual observer the great gash in the stonework, Richard tells us that he sowed hempseed

in the churchyard near the hole, and that this grew so rapidly that the tender hemp plants not only hid the gap in the wall, but provided cover for him to hide the spoils he hoped to steal from the treasury. When the hole was complete on 24 April, Pudlicott went through and found to his delight that the chamber was full of baskets, chests, and other vessels for holding valuables, plate, relics, jewels, and gold florins of Florence. Richard remained in the crypt gloating over the treasure surrounding him from the evening of 24 April to the morning of 26 April. Perhaps he found it impossible to tear himself away from so much wealth; or perhaps the intervening day, being the feast of St. Mark, there were too many people about, and too many services in the abbey to make his retreat secure. However, he managed on the morning of 26 April to get away, taking with him as much as he could carry. He seems to have dropped, or to have left lying about, a good deal that he was unable to carry, possibly for his friends to pick up.

Such is Pudlicott's story. It is the tale of a bold ruffian who glories in his crime, and is proud to declare "I alone did it". But there was a touch of heroism and of devotion in our hero thus taking on himself the whole blame. He voluntarily made himself the scapegoat of an offence for which scores were charged, and in particular he took on his own shoulders the heavy share of responsibility which belonged to the negligent monks of Westminster. Now as to the credibility of Pudlicott's story, we must admit that some of the juries accepted evidence that corroborated some parts of it. Sworn men declared their belief that the crypt was approached from the outside; that masons and carpenters were employed on the business; that the churchyard was closely guarded, and access refused, even to the butcher who rented the grazing. It is clear too that the booty was got rid of through the churchyard, and that piecemeal. There is evidence even that hemp was sown, though the verdict of a jury cannot alter the conditions of vegetable growth in an English winter. We must allow too that it is pretty certain that Warfield had not the custody of the keys of the crypt; though he was doubtless able to give facilities for tampering with

the door or forcing the lock. Yet Pudlicott's general story remains absolutely incredible. It was surely impossible to break through the solid wall, and no incuriousness or corruption would account for wall-piercing operations being unnoticed, when carried on in the midst of a considerable population for three months on end. Some of Pudlicott's lies were inconceivable in their crudity. Is it likely that hemp, sown at Christmas-time, would, before the end of April, afford sufficient green cover to hide the hole in the wall, and to secrete gleaming articles of silver within its thick recesses? And how are we to believe that there was a great gaping hole in the wall of the crypt when nothing was heard of the crime for several weeks after its perpetration, and no details of the king's losses were known until two months after the burglary, when the keeper of the Wardrobe unlocked the door of the treasury and examined its contents? A more artistic liar would have made his confession more convincing.

What really happened seems to me to have been something like this. I have no doubt that Pudlicott got into the treasury by the simple process of his friend, Adam of Warfield, giving him facilities for forcing the door or perhaps breaking a window. He remained in the crypt a long time so that he might hand out its contents to confederates who, as we learn from the depositions, ate, drank, and revelled till midnight for two nights running in a house within the precincts of the Fleet prison, and then went armed and horsed to Westminster, returning towards daybreak loaded with booty. But not only the revellers in Shenche's headquarters, but many monks, many abbey servants, the custodians of the palace, the leading goldsmiths of the city, and half the neighbours must have been cognisant of, if not participating in, the crime. It speaks well for honour among thieves, that it was not until deplorable indiscretions were made in the disposal of the booty that any news of the misdeed reached the ears of any of the official custodians of the treasure.

Suspicion of the crime was first excited by the discovery of fragments of the spoil in all sorts of unexpected places. A fisherman,

plying his craft in the then silver Thames, netted a silver goblet which had evidently been the property of the king. Passers-by found cups, dishes, and similar precious things hidden behind tombstones and other rough hiding-places in St. Margaret's Churchyard. Boys playing in the neighbouring fields found pieces of plate concealed under hedgerows. Such discoveries were made as far from Westminster as Kentish Town. Moreover, many other people lighted upon similar pieces of treasure trove. Foreign money found its way into the hands of the money-changers at London, York, and Lymm, and other remote parts. The city goldsmiths were the happy receivers of large amounts of silver plate, among them, I regret to say, being William Torel, the artist-goldsmith, whose skill in metal work has left such an abiding mark in the decorations of the abbey church. There were, too, scandalous stories whispered abroad. One of them was that a woman of loose life explained her possession of a precious ring by relating that it was given her by Dom Adam the sacrist "so that she should become his friend".

Such tales soon made the story of the robbery common property. At last it came to the ears of the king and his ministers, then encamped at Linlithgow for the Scottish war. Thereupon, on 6 June, the king appointed a special commission of judges to investigate the matter. On 20 June, John Droxford, the keeper of the wardrobe, came to Westminster with the keys of the crypt, and then and only then did any official examination of the treasury take place. An entry was made into the crypt and the damage which had been done was inspected. The result is still to be read in an inventory of the treasures lost and the treasures found which Droxford drew up, and which may now be studied in print.

It is pleasant to say that by the time Droxford went to work much of the treasure, which had been scattered broadcast, was being brought back and that more was soon to follow. The first investigations as to where the treasure had been carried led to fruitful results. A good deal of it was found hidden beneath the beds of the keeper of the palace and of his assistant. Still more was found in the lodgings of Richard

Pudlicott and his mistress. Adam the sacrist, and some of his brother monks and their servants, were discovered to be in possession of other missing articles. Altogether, when Droxford had finished his inventory, a large proportion of the articles which had been lost were reclaimed. Ultimately it seems that the losses were not very severe.

Wholesale arrests were now made. Richard Pudlicott was apprehended on 25 June, and William of the Palace soon experienced the same fate. Before long the connexion which the monks had had with the business seemed so well established that the whole convent, including the abbot and forty-eight monks, were indicted and sent to the Tower, where they were soon joined by thirty-two other persons. This time the king's net had spread rather too widely, and the indiscriminate arrest of guilty and innocent excited some measure of sympathy, even for the guilty. The majority of the clerical prisoners were released on bail, but some half-dozen laymen and ten monks were still kept in custody. Both the released and the imprisoned culprits raised a great outcry, sending petitions to the king demanding a further enquiry into the whole matter.

The first commission meanwhile had been empanelling juries and collecting evidence. But the matter was so serious that in November a second royal commission was appointed to hear and determine the matter. The members of this second commission were chosen from among the most eminent of the king's judges, including the chief justice of the king's bench, Sir Roger Brabazon and the shrewdest judge of the time, William Bereford, afterwards chief justice of common pleas.

I have already indicated in outline the result of the investigations of the two judicial commissions. I have told you how juries were empanelled from every hundred in the counties of Middlesex and Surrey, and from the wards of the city of London and from Westminster. The details of the evidence are worthy of more special treatment than I can give them here, because they afford a wonderful picture of the loose-living, easy-going, slack, negligent, casual, and

criminal doings of mediaeval men and women. I must, however, be content to restate the general result of the trials. Richard of Pudlicott was found guilty. Various other people, including William of the Palace, and certain monks, were declared accomplices, while Adam Warfield was shrewdly suspected to be at the bottom of the whole business. More than a year was spent in investigations, and it was not until March, 1304, eleven months after the burglary, that William of the Palace and five other lay culprits were comfortably hanged.

The great problem was how to deal with the clerical offenders without adding to the king's difficulties by rousing the sleeping dogs of the church, always ready to bark when the state meditated any infringement of the claim of all clerks to be subject solely to the ecclesiastical tribunals. Accordingly Richard of Pudlicott, and ten monks were reserved for further treatment. Pudlicott, as we have seen, had been a tonsured person in his youth, and he probably claimed, as did the monks, benefit of clergy. It was probably now that Pudlicott nobly tried to shield his monastic allies by his extraordinary confession. His heroism, however, availed him nothing. But whatever his zeal for the church, Edward I was upon adequate occasion ready to ride rough-shod over clerical privileges, and he always bitterly resented any attempt of a culprit, who had lived as a layman, trying to shield himself on the pretext that he had been a clerk in his youth. His corrupt chief justice, Thomas Weyland, had sought to evade condemnation by resuming the tonsure and clerical garb which he had worn before he abandoned his orders to become a knight, a country squire, and the founder of a family of landed gentry. But Weyland's subdiaconate did not save him from exile and loss of land and goods. Pudlicott's sometime clerical character had even less power to preserve him. He also paid tardily the capital penalty for his misdeed. But it was surely his clergy that kept him alive in prison for more than two years after the date of the commission of his crime.

h. ccc. iiii.

Anglia leta tunc gens scocia pugnat inane.
Anno regni regis eduardi tricesimo se-
cundo. papa benedictus dñi apud perusium
uerbum dei populo predicaret: inter cetera deplorauit
abominabile exitium in uicarium ihu xpi et
petri commissum. nec tantum casum persone desle-
uit. quinimo ipsum xpm a militibus pilati trum
spoliari asserens. captum dampnandum. et tanquam
re mortuum planxit in carne uelut in sepulchro
triduo a militibus custoditum. non ut dicit apostolus
xpc resurgens ex mortuis iam non moritur et cetera.
uerum est in carne iam glorificata. Et sicut dixit
xpc petro interroganti. dñe quo uadis: ait
uenio romam trum excofigi. Intellexit ergo hoc



The fate of the intimidated clerk still hangs in the balance when in the spring of 1305 Edward came back in triumph to London, rejoicing that at last he had effected the thorough conquest of Scotland. His cheerful frame of mind made him listen readily to the demands of the monks of Westminster to have pity on their unfortunate brethren, and to comply with the more general clerical desire that ecclesiastical privilege should be respected. Only a few months after the burglary, the news of the outrage on pope Boniface VIII at Anagni had filled all Christendom with horror. At the instance of Philip the Fair, king of France, and his agents in Italy the pope was seized, maltreated, and insulted. In the indignant words of Dante, "Christ was again crucified in the person of his vicar". The universal feeling of resentment against so wanton a violation of ecclesiastical privilege was ingeniously used in favour of the monks of Westminster. Among the monks, arrested at first, but soon released with the majority of their brethren, were two men who had some reputation as historians. One of these was magnanimous enough to write, two or three years afterwards, a sort of funeral eulogy of Edward, but the other, Robert of Reading, who, in my opinion, kept the official chronicle of the abbey from 1302 to 1326, set forth the Westminster point of view very effectively in the well-known version of the chronicle called *Flores Historiarum*, the original manuscript of which is now in the Chetham Library. In this is given what may be regarded as the official account of Richard's burglary. The robbery of the king of England was a crime only comparable to the robbery of the treasure of Boniface VIII, six months later at Anagni. The chronicler is most indignant at the suggestion that the monks had anything to do with the matter, and laments passionately their long imprisonment and their unmerited sufferings. He relies in substance on the story as told in Pudlicott's confession. The burglary was effected by a single robber.

So lacking in humour was the Westminster annalist that he did not scruple to borrow the phraseology and the copious Scriptural citations of a certain "Passion of the monks of Westminster according to John," the whole text of which is unfortunately not extant. I may say, however,

that the species of composition called a “Passion” was particularly in vogue at the turn of the thirteenth and fourteenth centuries, and is mainly characterised by its extraordinary skill in parodying the words of the Scripture in order to describe in mock heroic vein some incident of more or less undeserved suffering. For profanity, grim humour, and misapplied knowledge of the Vulgate the “passions” of this period have no equal. They are a curious illustration of the profane humour of the mediaeval ecclesiastic in his lighter moments.

The Westminster annalist did not stand alone. Other monastic chroniclers took up and accepted his story. It became the accepted monastic doctrine that one robber only had stolen the king’s treasure, and that therefore the monks of Westminster were unwarrantably accused. One writer added to his text a crude illustration of how, it was imagined, Pudlicott effected his purpose. You may see opposite this page his rude pictorial representation of the “one robber” kneeling on the grass in the churchyard, and picking up by a hand and arm extended through the broken window the precious stores within. But Pudlicott’s arm must have been longer than the arm of justice to effect this operation, and must have been twice or thrice the length of a tall man. This same chronicler was not contented with repeating the parallel now recognised between the sufferings of the monks of Westminster, under their unjust accusations, and the passion of pope Boniface, five months later, at the hands of the robbers hired by the ruthless king of France. He must give a picture of the Anagni outrage as well as of the orthodox version of the Westminster burglary. How far he has succeeded, you may gather from the rude sketch figured on the opposite page. Not only does he give us so vivid a picture of pope Boniface’s sufferings from the rude soldiery that the drawing might well be used as a representation of a martyrdom, like that of St. Thomas of Canterbury. His sketch of three other sacrilegious warriors, rifling the huge chest that contained the papal treasures, skilfully suggests that robbery was the common motive that united the outrage at Anagni to the outrage at Westminster. He leaves us to draw the deeper moral that

the sinful desire of unhallowed laymen to bring holy church and her ministers into discredit was the ultimate root of both these scandals.

Edward was satisfied with his Scottish campaign; he was becoming old and tired; he was pleased to know that a great deal of the lost treasure had been recovered; and he was always anxious to avoid scandal, and to minimise any disagreement with the monks of his father's foundation. He, therefore, condoned what he could not remedy. He soon released all the monks from prison. He even restored Shenche to his hereditary office of the keepership of the palace. Richard of Pudlicott alone was offered up to vengeance. In October, 1305, Richard was hanged, regardless of his clergy.



THE OUTRAGE AT ANAGNI.

Affairs at the monastery of Westminster were not improved after these events. There was much quarrelling among the monks. Walter of Wenlock died. There were disputes as to his succession; an unsatisfactory appointment was made, and there was a considerable amount of strife for a generation. The feeling against the king was shown equally against his son, and is reflected in the bitter Westminster chronicle of the reign of Edward II. One result of the demonstration of the futility of storing valuables within the precincts of the abbey was that the chief treasury of the wardrobe was bodily transferred to the Tower of London.

Some obvious morals might be drawn from this slight but not unpicturesque story; but I will forbear from printing them. One generalisation I will, however, venture to make by way of conclusion. The strongest impression left by the records of the trial is one of the slackness and the easy-going ways of the mediaeval man. The middle ages do not often receive fair treatment. Some are, perhaps, too apt to idealise them, as an age of heroic piety, with its statesmen, saints, heroes, artists, and thinkers; but such people are in all ages the brilliant exceptions. The age of St. Francis of Assisi, of Dante, of Edward I, of St. Louis of France, of St. Thomas Aquinas, the age in which the greatest buildings of the world were made, was a great time and had its great men. But the middle ages were a period of strange contrasts. Shining virtues and gross vices stood side by side. The contrasts between the clearly cut black and white of the thirteenth century are attractive to us immersed in the continuous grey of our own times. But we find our best analogies to mediaeval conditions in those which are nowadays stigmatised as Oriental. Conspicuous among them was a deep pervading shiftlessness and casualness. Mediaeval man was never up to time. He seldom kept his promise, not through malice, but because he never did to-day what could be put off till to-morrow or the next day.

Pudlicott then is a typical mediaeval criminal. He was doubtless a scamp, but most of the people with whom he had dealings were loose-thinking, easy-going folk like himself. Of course there are always the

exceptions. But Edward I, with his gift of persistence, was a peculiarly exceptional type in the middle ages, and even Edward I found it convenient to let things slide in small matters. Thus on this occasion Edward began his investigation with great show of care and determination to sift the whole matter; but when he found that thorny problems were being stirred up, he determined—not for the first time—to let sleeping dogs lie, and avoid further scandal.

We must not, however, build up too large a superstructure of theory on this petty story of the police courts, plus a mild ecclesiastical scandal. Nor must we emphasize too much or generalise too largely from the signs of slackness and negligence shown in mediaeval trials. I become more and more averse to facile generalisation about the middle ages or mediaeval man. They may, moreover, be made in both directions. On the one side we have the doctrine of our greatest of recent scholars, bishop Stubbs, that the thirteenth century was the greatest century of the middle ages, the flowering type of mediaeval christianity and so on. But on the other hand there is the contradictory generalisation of students, like my friend Mr. Coulton, who surveys the time from St. Francis to Dante with the conviction that the so-called great days of faith were the days of unrestrained criminality and violence. Both these views can be argued; but neither are really convincing. They seem to me to be obtained by looking at one side of the question only. A more fruitful doctrine is surely the view that ordinary mediaeval men were not so very unlike ourselves, and that their virtues and vices were not those of saints or ruffians, but were not wholly out of relation to the ordinary humdrum virtues and vices that are found to-day.

1 A lecture delivered in the John Rylands Library on 20 January, 1915.

NOTES.

I. NOTE ON AUTHORITIES.

The accounts of the robbery of the king's treasury in the Chronicles are vitiated by the obvious desire of the writers, who were mainly monks, to minimise the scandal to "religion" involved in the suspected complicity of the Westminster monks. This is seen even in the moderate account originating at St. Alban's Abbey, and contained in William Rishanger's *Chronicle* (Rolls Series), pp. 222 and 225, and also in the other St. Alban's version in *Gesta Edwardi Primi*, published in the same volume, pp. 420–1. The bias is naturally at its worst in the Westminster Abbey Chronicle, printed in *Flores Historiarum*, III. 115, 117, 121, and 131 (Rolls Series), which is more valuable perhaps as an index of Westminster opinion than as a dispassionate statement of the facts. The chief manuscript of this chronicle is preserved in the Chetham Library, Manchester [MS. Chetham No. 6712]. It was certainly written by a Westminster monk, and, perhaps after 1302, by Robert of Reading, who undoubtedly was the author of the account of the reign of Edward II. If Robert wrote the story of the robbery, it should be remembered that he was one of the forty-nine monks indicted and sent to the Tower on a charge of complicity in it. There are useful and more impartial notices in the non-monastic *Annales Londonienses* in Stubbs' *Chronicles of Edward I and Edward II*, I. 130, 131, 132, and 134 (Rolls Series). These date the robbery on 2 May.

The Chronicles being thus under suspicion, we must go for our main knowledge of the story to record sources, many of which are fortunately accessible in print. Palgrave's *Kalendars and Inventories of the Exchequer*, I. 251–99 (Record Commission, 1836), publishes the

writs appointing the two commissions of enquiry and the verdicts of the juries empanelled by them. The writs are also in Rymer's *Fœdera*, I. 956, 959 (Record Commission). The confession of Richard Pudlicott is printed in an English translation in H. Hall's *Antiquities of the Exchequer*, pp. 25–8, and also in L. O. Pike's *History of Crime in England*, Vol. I. The French original can be read in *Exchequer Accounts*, K. R., 332/8. Cole's *Records* (Record Commission, 1844) prints the indenture in which Droxford, the Keeper of the Wardrobe, specifies the jewels lost and recovered. Some entries in the *Calendar of Patent Rolls* and the *Calendar of Close Rolls* usefully supplement the continuous records.

There are several fairly full modern accounts, the majority of which are not quite satisfactory. That in Dean Stanley's *Memorials of Westminster Abbey* is more eloquent than critical. H. Harrod's article in *Archæologia*, LXIV. 375, "on the crypt of the chapter house at Westminster," is valuable for its clear identification of the crypt under the chapter house with the scene of the robbery. Equally useful is J. Burt's important paper "On some discoveries in connexion with the ancient treasury of Westminster," published in G. G. Scott's *Gleanings from Westminster Abbey*, pp. 18–33. The two fullest modern accounts are in L. O. Pike's *History of Crime in England*, I. 199–203 and 466–7, and Hubert Hall's *Antiquities of the Exchequer*, pp. 18–33. The latter is perhaps the better because, though telling the story in a book dealing with the exchequer, it recognises that the treasury robbed was the treasury of the wardrobe. There are, however, materials for a more detailed critical narrative than has hitherto been attempted.

II. NOTE ON THE ILLUSTRATIONS.

The two rough drawings, figured in the text, are reproduced from f. 192d of a Manuscript Chronicle in the British Museum [*MS. Cotton, Nero, D. ii.*]. The first, [opposite p. 19](#), represents the story of the robbery of the treasury of the wardrobe "by a single robber," which this chronicle, following the Westminster version, adopts. The second,

[opposite p. 20](#), depicts the outrage on Boniface VIII by the agents of Philip the Fair at Anagni, in September, 1303. This picture of the attack on the pope emphasizes the comparison made by the sympathetic monastic writers between the scandal of Anagni and the analogous outrage on the church by the imprisonment of the monks of Westminster. The photographs were taken by the permission of the Principal Librarian of the British Museum by the Artists Illustrators, Limited.

The rough plan of Westminster Abbey and the adjoining royal palace is taken from that published in Hall's *Antiquities of the Exchequer*, p. 31. I am indebted to my friend Mr. Hubert Hall and to his publisher, Mr. Elliott Stock, for permission to reproduce this.

Transcriber's Note

Capitalisation of “christianity” and “Wardrobe/wardrobe” retained as printed.

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